

03. Ayurveda Intellectual Property, Patents and Traditional Knowledge

IP-SAKTI Sahayak — RAG Knowledge Base

Purpose

Reference for IP questions involving Ayurveda, traditional knowledge and innovation.

Intellectual property

Relevant IP categories can include patents, trademarks, copyright, designs and trade secrets. The correct protection depends on what is being protected and the applicable law.

Traditional knowledge

Traditional Ayurvedic knowledge may already exist in public-domain literature. Defensive documentation can help prevent attempts to obtain inappropriate patents over knowledge that is not new.

Patents

A patent generally requires the claimed invention to satisfy applicable patentability requirements. Indian government material explains that traditional knowledge or a mere duplication of known traditional properties is not patentable under the relevant exclusion, while genuine improvements may be patentable if statutory requirements are met.

TKDL

The Traditional Knowledge Digital Library documents traditional knowledge from existing literature related to Ayurveda, Unani and Siddha in a searchable/digitized form and is used as a defensive tool.

RAG use

Useful questions: Can a traditional Ayurvedic formulation be patented? What is TKDL? Which IP right is relevant to a brand name? How can traditional knowledge affect patent examination?

Important

This is an educational summary, not legal advice. Patentability and other IP outcomes depend on the exact facts and current law.

Project note: This PDF is an original RAG-oriented summary created for the prototype. For legal, regulatory or medical decisions, use the current official source documents and qualified professionals.